

	Case Name	Tentative
50	<i>Kings Powder Coat Services LLC vs. Pen Manufacturing, LLC</i>	The Court GRANTS James Ling, Esq. and Ling Law Group APC's motion to be relieved as counsel for Defendant Pen Manufacturing, LLC. Counsel has used the required forms, all required information is supplied, and service is proper. (California Rules of Court, rule 3.1362.) Mr. Ling, Esq. is ordered to submit a new proposed order with all boxes filled out and all future hearing dates listed (identified below), for the Court's signature. Mr. Ling, Esq. shall serve the signed Order on all Counsel who have appeared and his client and then file a proof of service showing the same. Mr. Ling, Esq. and his firm will be relieved as counsel of record upon filing a proof of service of a copy of the signed order on the client. Defendant Pen Manufacturing, LLC cannot represent itself. (Paradise v. Nowlin (1948) 86 Cal.App.2d 897, 898, "A corporation cannot appear in court by an officer who is not an attorney and it cannot appear in propria persona.") The Court sets an OSC re Status of Counsel for Defendant Pen Manufacturing, LLC on September 4, 2026, at 9:00 a.m. in Department C21. Defendant Pen Manufacturing, LLC is ordered to retain counsel prior to the hearing. Noncompliance can result in the Court striking its Answer and entering default against said Defendant. On the Court's own motion, the Case Management Conference is continued to September 4, 2026, at

		9:00 a.m. in Department C21, to be heard concurrent with the OSC. Mr. Ling, Esq. shall serve notice of this Order.
51	<i>Lee v. Hu</i>	Plaintiffs Ton Lee’s and Virra Lee’s motion to set aside the judgment entered against them after they failed to oppose Defendants’ motion for summary judgment is DENIED. Code Civ. Proc. § 473(b) permits a court to grant relief from a judgment, dismissal, order or other proceeding taken against a party on the grounds of “mistake, inadvertence, surprise or excusable neglect.” Code Civ. Proc. § 473(b) provides for two types of relief. (Leader v. Health Industries of Am., Inc. (2001) 89 Cal. App. 4th 603, 615.) A court may grant discretionary relief upon the moving party’s showing of mistake, inadvertence, surprise or excusable neglect. (Id. at 615-616.) A court must grant mandatory relief upon a showing by an attorney declaration of mistake, inadvertence, surprise or neglect. (Id. at 616.) Mandatory relief is not available to Plaintiffs here. The mandatory portion of this statute provides that the Court shall “vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney’s client...” (Emphasis added.) The Court is not compelled per the statute to set aside a summary judgment that is neither a “default” or a “default judgment or dismissal.” (See Las Vegas Land & Development Co., LLC v. Wilkie Way, LLC (2013) 219 Cal.App.4th 1086, 1091; Shayan v. Spine Care & Orthopedic Physicians (2020) 44 Cal.App.5th 167, 170; English v. IKON